

TENTATIVE RULING

Case: **Accardi et al. v. Accardi**
Case No. CV2025-0939
Hearing Date: **March 19, 2026** **Department Eleven** **9:00 a.m.**

The Court declines to consider new arguments or facts raised, or evidence submitted, by plaintiffs Filippa Ferrando and Vito Accardi in their reply brief. New arguments may not be raised for the first time in a reply brief. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)

Thus, because there was no evidence submitted with the moving papers in support of the costs allegedly incurred by plaintiffs' counsel in this action, plaintiffs' motion for distribution of funds after partition is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 873.820, 874.010.)

Prior to refilling this motion, the Court encourages the parties to meet and confer over both parties' claimed costs, with a particular focus on the holding in *Orien v. Lutz* (2017) 16 Cal.App.5th 957, 966 [“...counsel fees may be allowed ... for services rendered for the common benefit even in contested partition suits.”]. (See Code Civ. Proc., § 872.140.)

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Jaime v. Ford Motor Company et al.**
Case No. CV2024-3266

Hearing Date: **March 19, 2026** **Department Fourteen** **9:00 a.m.**

The Court **DENIES** plaintiff Renae Jaime's request to continue the hearing on defendant Ford Motor Company's motion for summary judgment, or alternatively, summary adjudication because plaintiff failed to submit affidavits supporting that facts essential to justify an opposition may exist but could not be presented. (Code Civ. Proc., § 437c, subd. (h).)

The Court declines to consider plaintiff's late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

The Court declines to rule upon defendant's evidentiary objections made within its responses and objections to plaintiff's separate statement in opposition to Ford's motion because "[a]ll written objections to evidence must be served and filed separately from the other papers...in opposition to the motion." (Cal. Rules of Court, rule 3.1354(b).)

The Court declines to rule on defendant's evidentiary objections to plaintiff's evidence as the evidence objected to is not germane to the disposition of defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court rules on defendant's motion for summary adjudication as follows:

- Defendant's motion as to Issue 1 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff failed to present the subject vehicle for repair during the express warranty period and there was never more than one repair made to any aspect of said vehicle. (Civ. Code 1793.2, subds. (a)(3), (d)(2); *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 [the general rule is that an express warranty does not cover repairs made after the applicable time or mileage periods have elapsed]; *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 ["The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle."]; see *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 862: UMFs 1, 5 – 24.)
- Defendant's motion as to Issue 2 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff failed to present the subject vehicle for repair during the one-year implied warranty period. (Civ. Code, 1791.1; UMFs 1, 5 – 24.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar, supra*, 25 Cal.4th 826, at pp. 862.)